

STATE OF NEW YORK

11115--A

IN ASSEMBLY

April 24, 2026

Introduced by M. of A. BRABENEC -- read once and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the tax law, in relation to the imposition of a hotel and motel tax in the town of Monroe; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The tax law is amended by adding a new section 1202-11 to
2 read as follows:

3 § 1202-11. Hotel or motel taxes in the town of Monroe. (1) Notwith-
4 standing any other provisions of law to the contrary, the town of
5 Monroe, in the county of Orange, is hereby authorized and empowered to
6 adopt and amend local laws imposing in such town a tax, in addition to
7 any other tax authorized and imposed pursuant to this article such as
8 the legislature has or would have the power and authority to impose upon
9 persons occupying hotel or motel rooms in such town. For the purposes of
10 this section, the term "hotel" or "motel" shall mean and include any
11 facility consisting of rentable units and providing lodging on an over-
12 night basis and shall include those facilities designated and commonly
13 known as "bed and breakfast" and "tourist" facilities. The rates of such
14 tax shall not exceed five percent of the per diem rental rate for each
15 room, provided however, that such tax shall not be applicable to a
16 permanent resident of a hotel or motel. For the purposes of this section
17 the term "permanent resident" shall mean a person occupying any room or
18 rooms in a hotel or motel for at least ninety consecutive days.

19 (2) Such tax may be collected and administered by the chief fiscal
20 officer of the town of Monroe by such means and in such manner as other
21 taxes which are now collected and administered by such officer or as
22 otherwise may be provided by such local law.

23 (3) Such local laws may provide that any tax imposed shall be paid by
24 the person liable therefor to the owner of the hotel or motel room occu-
25 pled or to the person entitled to be paid the rent or charge for the
26 hotel or motel room occupied for and on account of the town of Monroe

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10702-04-6

1 imposing the tax and that such owner or person entitled to be paid the
2 rent or charge shall be liable for the collection and payment of the
3 tax; and that such owner or person entitled to be paid the rent or
4 charge shall have the same right in respect to collecting the tax from
5 the person occupying the hotel or motel room, or in respect to nonpay-
6 ment of the tax by the person occupying the hotel or motel room, as if
7 the tax were a part of the rent or charge and payable at the same time
8 as the rent or charge; provided, however, that the chief fiscal officer
9 of the town, specified in such local law, shall be joined as a party in
10 any action or proceeding brought to collect the tax by the owner or by
11 the person entitled to be paid the rent or charge.

12 (4) Such local laws may provide for the filing of returns and the
13 payment of the tax on a monthly basis or on the basis of any longer or
14 shorter period of time.

15 (5) This section shall not authorize the imposition of such tax upon
16 any transaction, by or with any of the following in accordance with
17 section twelve hundred thirty of this article:

18 a. The state of New York, or any public corporation, including a
19 public corporation created pursuant to agreement or compact with another
20 state or the Dominion of Canada, improvement district or other political
21 subdivision of the state;

22 b. The United States of America, insofar as it is immune from taxa-
23 tion;

24 c. Any corporation or association, or trust, or community chest, fund
25 or foundation organized and operated exclusively for religious, charita-
26 ble or educational purposes, or for the prevention of cruelty to chil-
27 dren or animals, and no part of the net earnings of which inures to the
28 benefit of any private shareholder or individual and no substantial part
29 of the activities of which is carrying on propaganda, or otherwise
30 attempting to influence legislation; provided, however, that nothing in
31 this paragraph shall include an organization operated for the primary
32 purpose of carrying on a trade or business for profit, whether or not
33 all of its profits are payable to one or more organizations described in
34 this paragraph.

35 (6) Any final determination of the amount of any tax payable hereunder
36 shall be reviewable for error, illegality or unconstitutionality or any
37 other reason whatsoever by a proceeding under article seventy-eight of
38 the civil practice law and rules if application therefor is made to the
39 supreme court within thirty days after the giving of the notice of such
40 final determination, provided, however, that any such proceeding under
41 article seventy-eight of the civil practice law and rules shall not be
42 instituted unless:

43 a. The amount of any tax sought to be reviewed, with such interest and
44 penalties thereon as may be provided for by local law shall be first
45 deposited and there is filed an undertaking, issued by a surety company
46 authorized to transact business in this state and approved by the super-
47 intendent of insurance of this state as to solvency and responsibility,
48 in such amount as a justice of the supreme court shall approve to the
49 effect that if such proceeding be dismissed or the tax confirmed the
50 petitioner will pay all costs and charges which may accrue in the prose-
51 cution of such proceeding; or

52 b. At the option of the petitioner such undertaking may be in a sum
53 sufficient to cover the taxes, interests and penalties stated in such
54 determination plus the costs and charges which may accrue against it in
55 the prosecution of the proceeding, in which event the petitioner shall

1 not be required to pay such taxes, interest or penalties as a condition
2 precedent to the application.

3 (7) Where any tax imposed hereunder shall have been erroneously, ille-
4 gally or unconstitutionally collected and application for the refund
5 thereof duly made to the proper fiscal officer or officers, and such
6 officer or officers shall have made a determination denying such refund,
7 such determination shall be reviewable by a proceeding under article
8 seventy-eight of the civil practice law and rules, provided, however,
9 that such proceeding is instituted within thirty days after the giving
10 of the notice of such denial, that a final determination of tax due was
11 not previously made, and that an undertaking is filed with the proper
12 fiscal officer or officers in such amount and with such sureties as a
13 justice of the supreme court shall approve to the effect that if such
14 proceeding be dismissed or the tax confirmed, the petitioner will pay
15 all costs and charges which may accrue in the prosecution of such
16 proceeding.

17 (8) Except in the case of a wilfully false or fraudulent return with
18 intent to evade the tax, no assessment of additional tax shall be made
19 after the expiration of more than three years from the date of the
20 filing of a return, provided, however, that where no return has been
21 filed as provided by law the tax may be assessed at any time.

22 (9) All revenues resulting from the imposition of the tax under the
23 local laws shall be paid into the treasury of the town of Monroe and
24 shall be credited to and deposited in the general fund of the town. Such
25 revenues may be used for any lawful purpose.

26 (10) If any provision of this section or the application thereof to
27 any person or circumstance shall be held invalid, the remainder of this
28 section and the application of such provision to other persons or
29 circumstances shall not be affected thereby.

30 § 2. This act shall take effect immediately and shall expire and be
31 deemed repealed three years after such date.